

Prajakta Pandharinath Wankhede @ ... vs Dhananjay Murlidhar Wagh on 24 June, 2019

Author: K.K.Tated

Bench: K.K. Tated

512.13627.19-mcast

IN THE HIGH COURT OF JUDICATURE AT BOMBAY CIVIL APPELLATE JURISDICTION

Misc. Civil Application (ST) No.13627/2019

Office Notes, Office
Memoranda of Coram,
appearances, Court's
orders or directions
and Registrar's orders

Court's or Judge's orders.

Mr. Jayendra Dadaji Khairnar for the
Applicant

CORAM : K.K.TATED.J.
DATED : JUNE 24, 2019

P.C.

1 Pursuant to the praecipe filed by the learned counsel for the Applicant, the matter is taken on production board for speaking to the minutes of order dated 11.06.2019.

2 The learned counsel for the Applicant submits that the order pertaining to some other matter has been uploaded in the present matter.

3 Office papers show that the correct order is placed on record but pertaining to some other inadvertently uploaded without signature of Judge, in the present matter, be deleted and correct order be uploaded.

the order
matter

Basavraj G Patil

::: Uploaded on - 25/06/2019

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512.13627.19-mcast

4 Similarly, the office has pointed out corrections in paragraph 2 of the order dated 11.06.2019 passed in the present matter.

"In line No.5 of paragraph 2, instead of 313(1)(ib) it should be 13(1)(ib)."

5 Hence, after carrying out aforesaid corrections in the original order dated 11.06.2019, correct order be uploaded in the present matter.

6 Corrected order dated 11.06.2019 reads thus:

FARAD CONTINUATION SHEET
IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION

MISC.CIVIL APPLICATION (STAMP)NO.13627/19

Office Notes, Office
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Court's or Judge's orders.

Mr.Jayendra D. Khairnar, advocate
for applicant.
None for respondents.

CORAM : K.K.TATED, J.

DATED : JUNE 11, 2019

P.C.

Heard learned advocate for applicant.

512.13627.19-mcast

2. By this application under Section 24 of C.P.C., the applicant/wife is seeking transfer of marriage petition No.72/2019, filed by husband/respondent for divorce under Section 13(1)(ib)of Hindu

Marriage Act, 1955 from the office of learned Civil Judge, Senior Divisions, Madgaon, Gao to learned Family Court, Nashik

3. Learned counsel for applicant submits that the applicant is a household wife. Therefore, it is not possible for her to attend each and every date. He submits that the distance between Nashik and Madgaon is of over night journey. Therefore, it is difficult for applicant to travel alone from Nashik to Madgaon.

4. Considering the submissions made by learned advocate for the applicant and the averments made in applicant, and as applicant is housewife, I am satisfied that applicant has made out a case for following order.

a) Office is directed to issue notice before admission to the respondent returnable on 19.07.2019 stating that if time permits the matter would be decided at the stage of admission itself.

512.13627.19-mcast

b) Applicant is permitted to serve the respondents by private notice either by RPAD and/or hand delivery and file affidavit of service to that effect, on or before next date, stating that if time permits the matter would be decided at the stage of admission itself.

c) Applicant to remove all office objections on or before 29.6.2018 failing which the miscellaneous civil application shall stand dismissed without referring back to the court.

d) Liberty granted to applicant to move for ad-interim relief, before returnable date, after giving 72 hours clear notice to the respondents along with the entire proceedings.

(K.K.TATED, J.)